



No. Z-20012/17/2020-BOCW
Government of India
Ministry of Labour and Employment
O/o DGLW

Shram Shakti Bhawan, Rafi Marg
New Delhi, dated the 1st December, 2023

ADDENDUM

Subject: Amendments/Addendum in respect of Social Security Benefits to be given to Building and Other Construction (BOC) Workers.

Ref: Model Welfare Scheme issued vide the then Secretary, Ministry of Labour & Employment, Govt. of India's D.O. Letter No. Z-20012/09/2018-BL dated 30.10.2018

In pursuance of Hon'ble Supreme Court's judgment / orders in W.P. (C) No. 318 of 2006 (National Campaign Committee for Central Legislation on Construction Labour Versus Union of India & Ors), a Model Welfare Scheme for BOC Workers and Action Plan for strengthening Implementation Machinery was formulated and forwarded to all States/UTs vide Ministry of Labour & Employment, Govt. of India's D.O. Letter No. Z-20012/09/2018-BL dated 30.10.2018, for its strict compliance for the welfare of BOC workers in respect of Machinery for Registration of Establishments & BOC workers; collection of cess; Social Security Benefits viz. Life and disability cover, Health and Maternity Cover, Education, Housing, Skill Development, Awareness programs and Pension.

2. In this regard, it is stated that the Model Welfare Scheme was issued in the Year 2018 and since then, several meetings have taken place to monitor the implementation of the provisions of the BOCW (RE&CS) Act 1996, review of the Model Welfare Schemes have taken place from time to time and feedback received from the stake holders. Following amendments/addendum are issued to the already issued Model welfare schemes. The approval of competent authority is hereby conveyed as **addendum to the existing Model Welfare Scheme** to the extent as mentioned below with the advise to State/UTs Governments to implement the same:

1. Onboarding Of BOC Workers on eShram Portal:

The State BOCW Welfare Board should have integration with eShram portal. The details of all BOC Workers registered with eShram will be shared with Board. In all such cases, the Board will verify these workers and include in their database, If found eligible for registration. The verified information will also be shared by Boards with eShram. The Board will also ensure that all BOC Workers registered with them are onboarded on eShram Portal and should have eShram Universal Account Number (UAN).

Now that we have Aadhar seeded database of unorganized workers registered under eShram Portal, it is essential that all the BOC workers are mapped with eShram Universal Account Number (UAN) so that portability of benefits is ensured to them in case of their migration from one State to another.

2. Educational Assistance:

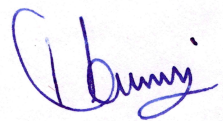
Opening of Special Educational / Training Institutions for the wards of registered BOC Workers:

- a. The construction of the school building for the wards of BOC workers may be done from the BOC Welfare Fund. Child specific expenditure like uniform, food, books etc. may also be borne from the Cess Fund.
- b. The salary and other recurring expenditure including establishment expenditure etc. should be borne by the States/UTs governments from their own resources.
- c. In order to ensure genuineness, the States should draw Standard Operating Procedures (SOPs) especially with regard to verification of BOC workers and their wards, facilities of education of the ward in case the BOC workers migrate to some other States, etc.

3. Facilitation centers and amenities at Labour Chowks / Nakas.

- a. The State Welfare Boards should open facilitation centers for registration of workers as beneficiaries, creating awareness about various schemes of the Board, welfare schemes run by Central Govt. and State Governments for the benefit of BOC Workers. These centers should also create **awareness** of the workers' rights under various Labour Laws including minimum rules of wages etc. For this, States Board may collaborate with Dattopant Thengdi National Board for Workers Education and Development (DTNBWED).
- b. State Welfare Boards should also ensure availability of various amenities at **Labour Chowks / Nakas** such as temporary sheds, drinking water, washrooms, crèches in addition to regular holding of registration campaign and enrolment in welfare schemes of the Government/ Board.
- c. In the event of BOC workers being migrant workers, the State Welfare Boards of destination States and source States shall coordinate with each other and relevant authorities for portability of benefits and addressing issues relating to migrant workers.

All other provisions of the Model Welfare Scheme dated 30.10.2018 remain unchanged.



(Navin Kumar)

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To

1. The Chief Secretaries/Administrators of all States/UTs
2. Principal Secretaries/Secretaries/Commissioners of Labour of all States/UTs
3. All Secretaries, BOCW in State/UT Welfare Boards

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